

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alyssa Rogowski	Team: Squad #07	CCRB Case #: 201809598	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 11/16/2018 2:30 PM	Location of Incident: East 163rd Street and 3rd Avenue	18 Mo. SOL 12/31/2020	Precinct: 42		
Date/Time CV Reported Fri, 11/16/2018 2:35 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 11/16/2018 2:35 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Shawn Anderson	10331	956391	042 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Rene Calzada	23232	941487	042 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Shawn Anderson	Abuse: Police Officer Shawn Anderson stopped the vehicle in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . POM Shawn Anderson	Discourtesy: Police Officer Shawn Anderson spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Shawn Anderson	Discourtesy: Police Officer Shawn Anderson spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . POM Shawn Anderson	Discourtesy: Police Officer Shawn Anderson acted discourteously toward § 87(2)(b)	D . Unsubstantiated
E . POM Shawn Anderson	Abuse: Police Officer Shawn Anderson failed to provide § 87(2)(b) with a business card.	E . Unsubstantiated

Case Summary

On November 16th, 2018, § 87(2)(b) filed this complaint via call to CCRB's intake unit.

On November 16th, 2018 at around 2:30pm, § 87(2)(b) and her husband, § 87(2)(b) were in § 87(2)(b) vehicle traveling on 3rd Avenue in the Bronx. § 87(2)(b) who was driving, made a left turn onto East 163rd Street from 3rd Avenue. An officer, identified as Police Officer Shawn Anderson of the 42nd Precinct, who had been travelling in the oncoming lane on 3rd Avenue, activated his lights and sirens and pulled them over on East 163rd Street in front of a Dunkin Donuts, located at 511 East 163rd Street (**Allegation A, Abuse of Authority, unsubstantiated**). When PO Anderson approached, § 87(2)(b) opened the driver's side door and PO Anderson said, "Are you fucking blind? You didn't fucking see me?" and, "Next time, you better fucking stop" to § 87(2)(b) and § 87(2)(b) (**Allegations B and C: Discourtesy, unsubstantiated**). PO Anderson then slammed the driver's side door of § 87(2)(b) vehicle (**Allegation D: Discourtesy, unsubstantiated**). PO Anderson did not provide an RTKA card (**Allegation E: Abuse of Authority, unsubstantiated**). PO Anderson then returned to his vehicle and drove away.

No video footage was obtained that captured this incident.

Findings and Recommendations

Allegation A—Abuse of Authority: Police Officer Shawn Anderson stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B—Discourtesy: Police Officer Shawn Anderson spoke discourteously to § 87(2)(b)

Allegation C—Discourtesy: Police Officer Shawn Anderson spoke discourteously to § 87(2)(b)

Allegation D—Discourtesy: Police Officer Shawn Anderson acted discourteously toward § 87(2)(b)

Allegation E—Abuse of Authority: Police Officer Shawn Anderson failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) recalled that she and her husband had been travelling in her vehicle, a 2011 white Kia Sportage, when they were pulled over by an officer, identified by the CCRB as PO Anderson. § 87(2)(b) described PO Anderson as a black male, approximately 5'11", medium build, 35-45 years old with a salt and pepper beard. When PO Anderson approached their vehicle, he said, "Are you fucking blind? You didn't fucking see me?" (Board Review 04, 05). § 87(2)(b) and her husband responded that they did not know he had needed to pass them. PO Anderson then stated, "Next time, you better fucking stop" and slammed the driver's side door of § 87(2)(b) vehicle. § 87(2)(b) and § 87(2)(b) did not say anything more to the officer than "okay". PO Anderson did not issue them a summons or provide any other documents. PO Anderson then returned to his vehicle, made a U-turn, and drove away. § 87(2)(b) recalled that the interaction lasted less than a minute and that she called to file her complaint immediately after.

§ 87(2)(b)'s statement was in sum and substance the same as § 87(2)(b) recollection (Board Review 06, 07). He described PO Anderson as a black male, approximately 5'10" tall, average build, 47-50 years old with a moustache. § 87(2)(b) is a Spanish-speaker, but stated in his interview that he understands English well. When PO Anderson approached their vehicle, he addressed § 87(2)(b) in English and stated, "You don't see me, are you fucking blind?" to which § 87(2)(b) replied that he had. PO Anderson did not say anything else and slammed the door. PO Anderson did not ask § 87(2)(b) for any documentation including his license, did not issue him a summons, and did not provide him with a card with his name on it. Upon PO Anderson leaving in his vehicle, § 87(2)(b) photographed the police vehicle's license plate.

§ 87(2)(b) and § 87(2)(b) provided a photograph taken just after the incident of the vehicle that pulled them over. The vehicle is a marked NYPD SUV, license plate number 5086, assigned to the 42nd Precinct (Board Review 03).

On November 16th, 2019, PO Anderson and his partner, Police Officer Rene Calzada of the 42nd Precinct, were assigned to RMP # 5086. PO Anderson matches the physical description provided by § 87(2)(b) and § 87(2)(b) of a black male officer with a salt and pepper beard (Board Review 14). According to PO Anderson's pedigree information, he is a black male who § 87(2)(b). He was § 87(2)(b) at the time of the incident and had salt and pepper facial hair. § 87(2)(g)

PO Anderson recalled that on November 16th, 2019 at approximately 12:26pm, he and his partner, PO Calzada, arrested one individual, § 87(2)(b), at § 87(2)(b) (Board Review 08). Immediately after the arrest, PO Anderson and PO Calzada transported § 87(2)(b) back to the 42nd Precinct Stationhouse. PO Anderson stated that from § 87(2)(b), they took 3rd Avenue all the way down back to the 42nd Precinct Stationhouse. PO Anderson and PO Calzada did not make any stops on their way to the stationhouse. PO Anderson stated that he did not know any circumstance in which he would make a stop while transporting a prisoner. PO Anderson's body-worn camera was activated during the transport. PO Anderson did not resume patrol and stayed in the stationhouse working on arrest processing.

PO Anderson confirmed that he was assigned to vehicle # 5086 on this day. PO Anderson stated that once he and his partner had returned to the stationhouse with the arrest, however, their vehicle could be used for whoever needed one at the stationhouse.

PO Anderson did not recall seeing a 2011 white Kia Sportage making a left turn at the intersection of 3rd Avenue and East 163rd Street. PO Anderson did not recall being cut off while driving and stated that when he is transporting a prisoner, he had to drive particularly carefully. PO Anderson was shown a photograph of § 87(2)(b) and stated that he was not familiar with him and had never seen him. PO Anderson was shown a photograph of § 87(2)(b) and stated that he was not familiar with her. The investigator provided PO Anderson with a summary of the complaint, including that the allegations were against an officer operating marked vehicle #5086. When asked if the incident sounded familiar to him, PO Anderson stated that he could not recall.

PO Anderson stated that he did not stop § 87(2)(b)'s vehicle. PO Anderson stated that he did not tell § 87(2)(b) "Are you fucking blind? You didn't fucking see me?" nor did he tell § 87(2)(b) and § 87(2)(b) "Next time you better fucking stop." PO Anderson denied that he slammed § 87(2)(b)'s door and denied that he failed to provide a RTKA card to § 87(2)(b).

BWC obtain from both PO Anderson's and PO Calzada's cameras corroborates PO Anderson's recollection that they did not make any stops while transporting § 87(2)(b) (Board Review 01, 02).

§ 87(2)(g)

As such, it is recommended that **allegations A – E** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been party (Board Review 09).

- This is the first CCRB complaint to which § 87(2)(b) has been party (Board Review 10).
- PO Shawn Anderson has been a member-of-service for 4 years and has been a subject in 4 prior CCRB complaints and 8 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) and § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On May 29th, 2019, a request for any record of a Notice of Claim being filed in regard to this complaint was sent to the New York City Office of the Comptroller. The response will be added to the case file upon receipt (Board Review 13).

Squad No.: _____

Investigator: _____
 Signature Print Title & Name Date

Squad Leader: _____
 Signature Print Title & Name Date

Reviewer: _____
 Signature Print Title & Name Date